

--SUMMARY--

Decision No. 2272/19

30-Dec-2019

A.Baker

- Second Injury and Enhancement Fund {SIEF} (severity of accident)
- Second Injury and Enhancement Fund {SIEF} (severity of preexisting condition)

No Summary Available

6 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w0520n]

Style of Cause:

Neutral Citation: 2019 ONWSIAT 2889



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 2272/19

BEFORE: A.G. Baker: Vice-Chair

HEARING: December 18, 2019, at Toronto
Written

DATE OF DECISION: December 30, 2019

NEUTRAL CITATION: 2019 ONWSIAT 2889

DECISION UNDER APPEAL: WSIB Appeals Resolution Officer (ARO) decision dated September 12, 2018

APPEARANCES:

For the worker: Not Participating

For the employer: M. Senicar, Paralegal

Interpreter: n/a

REASONS

(i) Introduction

- [1] The employer appeals the decision of Appeals Resolution Officer (ARO) H. Shaw, dated September 12, 2018. In that decision, the ARO concluded that the quantum of the Second Injury and Enhancement Fund (SIEF) cost relief granted to the employer for the worker's left shoulder injury was correctly set at 50%.

(ii) Issue

- [2] Quantum of the SIEF cost relief granted to the employer.

(iii) Background

- [3] The ARO also noted the following brief background in the decision under appeal:

The worker was employed as a truck driver. On January 13, 2015 he was inspecting his trailer and slipped and fell on his left shoulder. He was 62 years old at the date of injury. Entitlement was accepted for a supraspinatus tendon full thickness tear and a surgical repair was required in March 2016. He was paid loss of earnings (LOE) benefits from November 30, 2015 to July 18, 2016. There were periods of full and partial LOE benefits. He was determined to be recovered from the injury by July 2016 with no permanent impairment.

Date of Case Manager Decision:

March 16, 2018

Case Manager's Conclusion:

The Case Manager granted 50% SIEF relief, based on a moderately severe accident and a moderately significant pre-existing condition.

- [4] The employer objected to the conclusion of the Case Manager, and the ARO denied the employer's objection. The employer appealed those findings to the Tribunal. I also note for the record that submissions were received from the employer in this case dated March 18, 2019. The worker did not participate in the written appeal process.

(iv) Law and Policy

- [5] The employer's entitlement to SIEF relief is governed by the *Workplace Safety and Insurance Act, 1997*. The Board's policy relating to SIEF cost relief is included in *Operational Policy Manual (OPM)* Document No. 14-05-03, which states in part:

Policy

If a prior disability caused or contributed to the compensable accident, or if the period resulting from an accident becomes prolonged or enhanced due to a pre-existing condition, all or part of the compensation and health care costs may be transferred from the accident employer in Schedule 1 to the SIEF.

Guidelines

...

The objectives of this policy are to provide employers with financial relief when a pre-existing condition enhances or prolongs a work-related disability. It thereby encourages employers to hire workers with disabilities

Definitions

Pre-accident disability is defined as a condition which has produced periods of disability in the past requiring treatment and disrupting employment.

Pre-existing condition is defined as an underlying or asymptomatic condition which only becomes manifest post-accident.

...

SIEF – Application to Employer Costs

Medical Significance of Pre-existing Condition*	Severity of Accident**	Percentage of Cost Transfer***
Minor	minor moderate major	50% 25% 0%
Moderate	minor moderate major	75% 50% 25%
Major	minor moderate major	90%-100% 75% 50%

NOTES

* The medical significance of a condition is assessed in terms of the extent that it makes the worker liable to develop a disability of greater severity than a normal person. An associated pre-accident disability may not exist.

With psychological conditions, the possibility of prior psychic trauma resulting from life experience could be considered as evidence of vulnerability, and justify recommending relief to the employer, even in the absence of pre-existing psychological impairment.

** The severity of the accident is evaluated in terms of the accident history and approved definitions.

Accident History Components

- mechanics (lift, push, pull, fall, blow, etc.)
- position (kneeling, standing, sitting, squatting, bending, etc.)
- environment (lighting, temperature, weather conditions, terrain, etc.)

Definition - "Severity of Accident"

Minor: expected to cause non-disabling or minor disabling injury

Moderate: expected to cause disabling injury

Major: expected to cause serious disability probable permanent disability

*** The percentage of the total cost of the claim transferred to the SIEF.

(v) Decision

[6]

In regard to the severity of the accident in this case, the employer submitted it should be considered a minor accident. Reference was made in that regard to *Decision No. 1320/15*, which was submitted to find that an accident was minor in which a worker fell on ice. It was submitted

that the worker in that case was not moving quickly and did not fall with a great amount of force. It was also submitted that the case at hand involved a worker falling in snow and with a similar circumstance, not involving a worker running or with significant force.

[7] It was further submitted that the worker did not fall from a height or suffer from traumatic injuries that required the attendance of emergency personnel or immediate surgical intervention. Further Decisions were also cited, *Decision Nos. 1238/07* and *2505/09*, as standing for similar falls being considered as minor, for example where a worker fell 3-4 feet with no force behind them. It was therefore submitted that the mechanics of such an accident would be considered at most minor.

[8] I recognize that there may well be a range of decisions dealing with falls, and that have in some circumstances concluded that there were minor accidents. It is also well established that each case must be considered on its own facts. There are also cases that have found a slip and fall in an icy parking lot, for example, to be an accident of moderate severity, as in *Decision No. 961/19*, *Decision No. 167/13*, and *Decision No. 2275/12*. In such cases, slippery and icy conditions were of importance to the environment and conditions leading to the accident.

[9] Such an environment was not dissimilar in this case, a fall in wintery conditions that could lead to more than minor injury. As the ARO also noted, it was evident that significant external force was applied to the worker's shoulder when he unexpectedly fell in the snow. He also fell directly on the shoulder to the extent that he was subsequently referred for specialist treatment and surgical repair. In my view, such circumstances support a finding that the accident in this case was of moderate severity. The appeal is denied in that regard.

[10] In regard to the pre-existing condition in this case, the ARO noted that the claim was prolonged and enhanced, and that the worker had prior claims for a left shoulder dislocation and a left biceps tendon injury with surgery in December 2005. The worker had an MRI of the left shoulder in 2013 indicating moderate degenerative changes and a tear. The worker also required a year and a half to recover from the injury in 2015. It was also recognized that such a tear may require a long recovery period, but that the pre-existing condition was contributing to that recovery in this case.

[11] It was further noted that the employer argued there was a major pre-existing condition in the AC joint and with the tear in the shoulder. The ARO found however that the condition was moderate in nature. It was noted that the worker was 63 years of age and that it was normal to find degenerative age related changes for such an individual, but not necessarily causing a prolonged recovery period. It was further noted that the disability had not prevented the worker from performing his normal job duties prior to the January 2015 accident. It was also noted that the worker made a full recovery from the injury and returned to work with the employer, again suggesting the pre-existing condition was moderate and not severe.

[12] The employer submitted however that the worker had prior shoulder problems that were well canvassed in an independent medical consultation from Dr. Weinberg, orthopaedics, in March 2019. That reporting was submitted to find significant pre-existing pathology and weakening of the rotator cuff in relation to the prior dislocation and that would explain the massive tearing resulting from the slip and fall injury. It was also found that the worker had long-standing dysfunction in the rotator cuff and that his obesity may have contributed as well.

- [13] Dr. Weinberg also addressed specific questions and indicated that test results had shown severe osteoarthritis in the AC joint and predisposition to impingement problems. The doctor related much of the tearing to pre-existing weakening and partial tearing in the shoulder, but also stated that the damage could have resulted from the work injury. It was also noted that the rupture of the long head of the biceps tendon was likely the result of the January 2015 injury.
- [14] In that regard, it was evident that there were significant pre-existing problems with the shoulder that included a pre-existing small or partial tear, which according to Dr. Weinberg, developed into a massive tear in relation to the work injury. Despite the evident relationship the doctor recognized between the work accident and the condition of the shoulder post-accident, the doctor went on to find that the worker had significant pre-existing pathology in the shoulder and that constituted a major factor serving to prolong the worker's recovery. The worker's obesity was considered to be only a minor factor in this case.
- [15] I recognize the qualifications of Dr. Weinberg and certainly agree that this worker had significant pre-existing conditions in the left shoulder that included AC arthritis, impingement and prior rotator cuff damage. I also note however that Dr. Weinberg found the dysfunction in the shoulder was asymptomatic at the time of the accident. The doctor also flagged the significance of the work injury in this case, and indicated that a portion of the damage to the shoulder was due to the work injury, such as the rupture to the biceps tendon. It was also evident from the doctor's report that a small or partial pre-existing rotator cuff tear developed into a "massive tear in relation to the work injury".
- [16] As the ARO also noted, this worker had been at work without difficulty prior to the January 2015 work accident. The file was also reviewed in August of 2015 by a Board occupational medicine specialist, Dr. Somerville. The doctor recognized the worker's pre-existing shoulder problems, including dislocation, suspicion of prior tearing, and osteoarthritis. The doctor also reached similar findings to Dr. Weinberg, but evidently placed more weight on the work accident contributing to the worker's shoulder injury than the pre-existing difficulties. It was stated for example that the worker complained of ongoing symptoms since the accident. It was also noted that, while degenerative findings were evident, there was also a "massive supraspinatus and infraspinatus tendon tear" that was compared with prior MRI results in 2013 that showed an incomplete tear. The full tear in 2015 was found to be acute and compatible with the workplace accident.
- [17] After considering the above noted medical reporting, I was persuaded that this worker had significant pre-existing left shoulder conditions. They have been well canvassed by the specialists that reviewed the file information in this case. However, I was not persuaded that the pre-existing difficulties were more than moderate in severity, noting in particular the emphasis in the medical reports on the acute injury in January 2015 to the shoulder and in particular the full rotator cuff tear as a result. In my view, the pre-existing condition was of moderate severity, and the appeal is denied in that regard.
- [18] The severity of the accident and the worker's pre-existing condition were both moderate in this case. The SIEF cost relief granted to the employer was therefore correctly set at 50%. The appeal is therefore denied.

DISPOSITION

[19] The appeal is denied.

DATED: December 30, 2019

SIGNED: A.G. Baker